

Beam Therapeutics Inc. v. Whynot

Given the DTSA cause of action, emergency-relief posture, Whynot's public CMC role, and Beam's disclosed modalities, the likely technical proof will concern whether identified nonpublic process-development or CMC information is secret, valuable, attributable to Beam, technically distinct from public/domain knowledge, and capable of conferring a development or manufacturing head start. The complaint is needed to confirm or narrow this map.

Independent preliminary research based on public information.

FILED	FORUM	DOCKET	MATTER
2026-08-21	U.S. District Court for the District of Massachusetts	1:26-cv-13862	Defend Trade Secrets Act (Of 2016)

Prepared 2026-08-25. No attorney or expert contacted. Availability, interest, compensation, and conflicts not checked.

Public filing, likely recipient, and technical frame

CAPTION

Beam Therapeutics Inc. v. Whynot

FORUM / DOCKET

U.S. District Court for the District of Massachusetts / 1:26-cv-13862

FILED / TYPE

2026-08-21 / Defend Trade Secrets Act (of 2016)

PUBLIC DOCKET[Open docket](#)**VERIFIED PUBLIC RECORD**

Beam filed a complaint against Andrew Whynot with sixteen exhibits. Beam filed an ex parte motion for a temporary restraining order and preliminary injunction. Beam filed a supporting memorandum with declarations from Tavish M. Brown, Susan O'Connor, Chris Oesterling, and Brad Dutot. The court declined to resolve the motion ex parte, required proof of service of the complaint, motion papers, and order, and set the response deadline at ten days after proof of service is filed.

LIKELY RESEARCH PURCHASER

Tavish M. Brown - Outside counsel, Hirsch Roberts Weinstein LLP. Analytical inference: because Brown filed the complaint and emergency-relief papers and his public practice profile expressly covers trade secrets and confidential information, he is the most likely outside-counsel lead for early technical expert research. This is not a statement about internal responsibility.

tbrown@hrwlawyers.com - publicly listed on the [official firm biography](#); not inferred.

TECHNICAL FRAME

Given the DTSA cause of action, emergency-relief posture, Whynot's public CMC role, and Beam's disclosed modalities, the likely technical proof will concern whether identified nonpublic process-development or CMC information is secret, valuable, attributable to Beam, technically distinct from public/domain knowledge, and capable of conferring a development or manufacturing head start. The complaint is needed to confirm or narrow this map.

Secondary-source limitation: No allegation about what Whynot allegedly took, used, disclosed, retained, or intended to do is treated as verified. Precise trade-secret definitions, chronology, employment obligations, devices/accounts, destination, and proposed injunction language require the actual filings. [Open public synopsis](#)

Questions likely to require expert input

This issue map is a research plan, not a legal conclusion. The filed complaint, patent exhibits, intrinsic record, and discovery must control.

01 What specific CMC or process-development information does Beam identify as the alleged trade secret, and at what level of granularity?

A technical expert can separate a protectable combination of parameters, acceptance criteria, and know-how from broad labels such as 'manufacturing process' or generally known platform science.

Potential evidence: Complaint and sealed/unsealed trade-secret schedule; Batch records, development reports, protocols, specifications, and change histories; Publications, patents, regulatory guidance, conference posters, and common industry practice

02 Which asserted information was genuinely nonpublic and economically valuable rather than disclosed by Beam or independently available to a skilled CMC professional?

Beam publicly discloses modalities, facility capabilities, and some integrated manufacturing results; the proof must distinguish those disclosures from confidential detail.

Potential evidence: Beam's SEC filings, patents, posters, and publications; Industry standards and FDA guidance; Timestamped internal development records and confidentiality controls

03 If files or communications are identified, what technical content do they contain, and can that content be tied to a Beam process, program, or development stage?

Digital possession alone would not explain technical meaning, provenance, uniqueness, or practical utility.

Potential evidence: Forensic images, access logs, downloads, email or cloud-transfer records; Metadata, version histories, authorship records, and document-to-process mapping; Comparison with validated process descriptions and contemporaneous program records

04 Could a recipient reproduce, optimize, troubleshoot, or accelerate a base-editing product or manufacturing workflow using the alleged information?

Practical technical utility bears on economic value, threatened harm, causation, and any claimed development head start.

Potential evidence: Critical-process-parameter and critical-quality-attribute relationships; Scale-up, robustness, comparability, deviation, and failure-analysis records; Counterfactual time/cost analysis and independently available alternatives

Questions likely to require expert input

05 Can any allegedly overlapping later work be explained by independent development, ordinary CMC knowledge, or common regulatory requirements?

A disciplined technical comparison is needed before attributing similarity to use of Beam information.

Potential evidence: Chronologies, notebooks, source files, raw data, and design-of-experiments records; Public literature and standard operating approaches available before the alleged conduct; Element-by-element process and analytical-method comparison

06 What scientifically meaningful conduct or information could an injunction identify without sweeping in general skill, experience, public science, or unrelated modalities?

The court is considering emergency relief; technically precise boundaries are needed for an enforceable and proportionate order.

Potential evidence: Proposed order and defined trade-secret list; Modality-specific workflow maps for ex vivo HSPC, LNP, mRNA, and analytical work; Expert explanation of separable steps, parameters, and public baselines

Candidates 1-2 for further diligence

Ranked for preliminary research priority based on subject-matter fit, relevant public work, testimony, and visible diligence burden. This is not a retention recommendation.

01 Kelvin H. Lee

Gore Professor of Chemical & Biomolecular Engineering, University of Delaware; Institute Director, National Institute for Innovation in Manufacturing Biopharmaceuticals (NIIMBL)

TECHNICAL FIT

Top-level biomanufacturing and analytical fit for process development, manufacturing control, proteomics, systems biology, and the public-knowledge baseline for CMC know-how.

RELEVANT WORK

His university profile identifies NIIMBL leadership and work in proteomics, biological mass spectrometry, protein secretion and synthesis; these bear on process understanding and analytical characterization, though not specifically on Beam's alleged secrets.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, or trial-testimony source was located in the bounded search.

POINTS FOR FURTHER DILIGENCE

Broad biomanufacturing expertise may be less specific to autologous HSPC electroporation and base-editor chemistry. NIIMBL's extensive industry relationships require conflicts and funding diligence.

[Source 1](#) | [Source 2](#)

[Draft email](#) | khl@udel.edu | [public email source](#)

02 Bruce L. Levine

Barbara and Edward Netter Professor in Cancer Gene Therapy, University of Pennsylvania; founding director of Penn's Clinical Cell and Vaccine Production Facility

TECHNICAL FIT

Direct fit for clinical cell and gene therapy, cGMP manufacturing, testing, technology transfer, and engineered-cell product operations.

RELEVANT WORK

Penn states that his interests include cell, gene, and biologic therapy clinical-trial development, manufacturing, and testing and expressly lists Good Manufacturing Practices expertise.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, or trial-testimony source was located. A 2023 ISCT paper instead discloses scientific-advisory and consulting compensation that must be evaluated separately.

POINTS FOR FURTHER DILIGENCE

His public disclosure lists advisory roles with multiple cell/gene-therapy companies and consulting for GSK; commercial and institutional conflicts could be substantial. His primary scientific focus is engineered immune-cell therapy rather than Beam's full platform.

[Source 1](#) | [Source 2](#)

[Draft email](#) | levinebl@pennmedicine.upenn.edu | [public email source](#)

Candidates 3-4 for further diligence

03 Krishnendu Roy

Bruce and Bridgett Evans Dean of Engineering and University Distinguished Professor of Biomedical Engineering, Pathology/Microbiology/Immunology, and Chemical & Biomolecular Engineering, Vanderbilt University

TECHNICAL FIT

Strong fit for therapeutic-cell characterization, scalable cell manufacturing, potency/quality concepts, and engineering of nucleic-acid delivery.

RELEVANT WORK

Vanderbilt records his prior leadership of the NSF Cell Manufacturing Technologies center and the Marcus Center for Therapeutic Cell Characterization and Manufacturing, plus work in stem-cell engineering and nucleic-acid delivery.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, or trial-testimony source was located; name collisions were excluded.

POINTS FOR FURTHER DILIGENCE

A dean role may limit current hands-on process work. His expertise is cell manufacturing broadly, not specifically Beam base editing, and his consortium/industry relationships require diligence.

[Source 1](#) | [Source 2](#)

[Draft email](#) | krish.roy@vanderbilt.edu | [public email source](#)

04 Michael Betenbaugh

Professor of Chemical and Biomolecular Engineering, Johns Hopkins University; lead principal investigator of the Advanced Mammalian Biomanufacturing Innovation Center

TECHNICAL FIT

Strong process-science fit for mammalian cell biomanufacturing, cell-line optimization, systems biology, and identifying which process information is routine versus proprietary.

RELEVANT WORK

Johns Hopkins describes his pioneering work in eukaryotic metabolic engineering, mammalian production hosts, glycobiology, and secretory-pathway process bottlenecks.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, or trial-testimony source was located in the bounded search.

POINTS FOR FURTHER DILIGENCE

His public work centers substantially on production cell lines and recombinant biologics, which is adjacent to but not the same as autologous HSPC base editing or LNP delivery.

[Source 1](#)

[Draft email](#) | beten@jhu.edu | [public email source](#)

Candidates 5-6 for further diligence

05 Abraham M. Lenhoff

Allan P. Colburn Professor of Chemical Engineering, University of Delaware

TECHNICAL FIT

Strong downstream-processing and protein-biophysics fit for impurity clearance, chromatography, phase behavior, transport, and analytical comparison of process streams.

RELEVANT WORK

Delaware lists applied protein biophysics, solution thermodynamics, adsorption, chromatography, and transport; a 2025 manuscript addresses scalability of impurity precipitation in downstream biomanufacturing.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, or trial-testimony source was located in the bounded search.

POINTS FOR FURTHER DILIGENCE

His strongest fit is protein purification and downstream unit operations, not whole-cell manufacturing, genome editing, or digital misappropriation. Utility depends on the complaint's actual secret definitions.

[Source 1](#) | [Source 2](#)

[Draft email](#) | lenhoff@udel.edu | [public email source](#)

06 Matthew Porteus

Sutardja Chuk Professor of Definitive and Curative Medicine and Professor of Pediatrics, Stanford University School of Medicine

TECHNICAL FIT

Direct scientific fit for genome editing in hematopoietic stem and progenitor cells, nuclease-mediated editing, clinical translation, and edited-cell characterization.

RELEVANT WORK

Stanford describes his work developing homologous-recombination genome editing as curative therapy for genetic blood diseases and identifies him as a pioneer of genome editing.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, or trial-testimony source was located in the bounded search.

POINTS FOR FURTHER DILIGENCE

Deep genome-editing expertise does not by itself establish commercial CMC or trade-secret valuation expertise. Patent, startup, sponsor, competitor, and Beam-related academic conflicts need careful review.

[Source 1](#) | [Source 2](#)

[Draft email](#) | mporteus@stanford.edu | [public email source](#)

Candidates 7-8 for further diligence

07 Paula Cannon

Distinguished Professor of Immunology and Immune Therapeutics, Stem Cell Biology and Regenerative Medicine, and Biomedical Engineering, University of Southern California

TECHNICAL FIT

Strong fit for CRISPR/ZFN engineering of hematopoietic stem and immune cells, gene-therapy translation, and distinguishing platform science from process-specific know-how.

RELEVANT WORK

USC describes her use of CRISPR/Cas9 to engineer immune cells and lists work on clinical applications and qualification of genome editing in hematopoietic stem/progenitor cells.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, or trial-testimony source was located in the bounded search.

POINTS FOR FURTHER DILIGENCE

Her public record is strongest in viral and nuclease-based cell engineering, not Beam's proprietary base editors or end-to-end commercial CMC. Society leadership and collaborations broaden conflict diligence.

[Source 1](#) | [Source 2](#)

[Draft email](#) | pcannon@usc.edu | [public email source](#)

08 Fyodor Urnov

Professor of Genetics, Genomics, Evolution, and Development, University of California, Berkeley; Director for Technology and Translation at the Innovative Genomics Institute

TECHNICAL FIT

High fit for genome- and epigenome-editing mechanisms, tool development, technical translation, and separating generally known editing concepts from implementation-specific know-how.

RELEVANT WORK

Berkeley lists his research interest as CRISPR-based genome and epigenome editing and his technology-translation leadership at IGI.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, or trial-testimony source was located in the bounded search.

POINTS FOR FURTHER DILIGENCE

His central expertise is editing technology rather than CMC operations, scale-up, or damages. Prior industry work, IP positions, public advocacy, and relationships across genome-editing companies require diligence.

[Source 1](#)

[Draft email](#) | urnov@berkeley.edu | [public email source](#)

Candidates 9-10 for further diligence

09 David V. Schaffer

Hubbard Howe Jr. Distinguished Professor of Biochemical Engineering, University of California, Berkeley; professor of bioengineering and molecular and cell biology; executive director of QB3 and director of Bakar Labs and the Berkeley Stem Cell Center

TECHNICAL FIT

Strong complementary fit for therapeutic gene delivery, viral-vector engineering, stem-cell therapeutics, and delivery-platform technical comparison.

RELEVANT WORK

Berkeley describes his work engineering AAV and other viral vehicles through directed evolution and developing genetic cargoes and targeted nucleases for therapy.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, or trial-testimony source was located in the bounded search.

POINTS FOR FURTHER DILIGENCE

His best-known delivery work is AAV-focused, while Beam publicly emphasizes electroporation and LNP modalities. Translational ventures, patents, licenses, and company relationships may create conflicts.

[Source 1](#) | [Source 2](#)

[Draft email](#) | schaffer@berkeley.edu | [public email source](#)

10 Millicent Sullivan

Alvin B. and Julie O. Stiles Professor of Chemical & Biomolecular Engineering and Professor of Biomedical Engineering, University of Delaware

TECHNICAL FIT

Complementary fit for intracellular delivery of DNA/RNA and macromolecular therapeutics, biomaterials, nanoparticle design, and the boundary between public delivery principles and proprietary formulations/processes.

RELEVANT WORK

Delaware lists gene and siRNA delivery, polymer and peptide biomaterials, and cell/organelle-specific macromolecular delivery.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific expert report, deposition, or trial-testimony source was located in the bounded search.

POINTS FOR FURTHER DILIGENCE

Her public work is more research-oriented than commercial cell/gene-therapy CMC and is not specifically tied to base editing, HSPC electroporation, or Beam's LNP processes.

[Source 1](#) | [Source 2](#)

[Draft email](#) | msullivan@udel.edu | [public email source](#)

Preliminary candidates; no conflicts or availability determination

- Run party, affiliate, counsel, inventor, funder, and technology conflicts.
- Confirm testimony history, exclusions, compensation, publications, patents, and deposition performance.
- Investigate licensing, grants, consulting, commercial interests, and prior technical positions.
- Confirm role fit, availability, and interest only after counsel authorizes outreach.

ONGOING MATTER-SPECIFIC RESEARCH

Flint Witness Research works in the post-filing window, turning pleadings and public technical records into issue maps, researched candidate slates, and diligence starting points as the case develops.

[Schedule a 15-minute conversation](#)

CORE SOURCES

Public docket: <https://dockets.justia.com/docket/massachusetts/madce/1:2026cv13862/305260>

Official attorney biography and email: <https://www.hrwlawyers.com/news-and-events/client-alerts/uscis-releases-new-form-i-9/>

Public technical context source: <https://beamtx.com/science/base-editing-applications/>

LIMITATIONS

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